

LOGFRET, INC.,	:	
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	:	
Complainant,	:	
	:	
v.	:	Docket No. 18-10
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	:	
KIRSHA, B.V.,	:	
Leendert Johannes BERGWERFF a/k/a Hans BERGWERFF,	:	
LINDA SIEVAL,	:	
	:	
Respondents.	:	
	:	

Pursuant to Rule 70(b) of the Federal Maritime Commission’s Rules of Practice and Procedure, *see* 46 C.F.R. § 502.70(b), and at the direction of Your Honor’s Order Requiring a Supplement to the Motion to Amend Complaint and Granting Motion for Second Extension of Time to Respond to Motion to Dismiss, issued on February 12, 2019, Complainant Logfret, Inc. (“Complainant” or “Logfret”) respectfully submits this memorandum in support of its Motion to Amend Complaint, filed on February 7, 2019.

Logfret filed its Verified Complaint against Respondents at the Federal Maritime Commission (“Commission” or “FMC”) on November 9, 2018. Well more than 25 days passed from the date of filing of the Complaint with no response from Respondents, in violation of Rule 62(b)(1) of the FMC Rules of Practice and Procedure. 46 C.F.R. § 502.62(b)(1). During this time Respondents not only failed to file an answer or provide a response of any kind to the

Commission, but also failed to make an appearance or serve any response on Complainant.¹

On December 19, 2018, the Commission issued an Order Requiring Answer, which *sua sponte* provided Respondents with additional time beyond the 25 days provided in Rule 62(b)(1) to file an answer or response to the Complaint. The December 19, 2018 Order stated, “Respondents’ answer must be filed by January 9, 2019, or they will be in default.” Further, on December 26, 2018, Your Honor issued a Notice Regarding Deadlines, which stated the Commission’s offices would be inaccessible temporarily as a result of the partial federal government shutdown. Accordingly, Respondents’ responsive pleading was required to be served on Logfret on or by January 9, 2019.

Counsel for Respondents reportedly mailed Respondents’ Motion to Dismiss to Complainant on January 9, 2019, according to a Memorandum dated a week after this deadline. *See Ex. 2.* However, Counsel for Respondents failed to notify counsel for Logfret of the Motion to Dismiss by electronic mail on January 9, 2019, as requested in the Notices of Appearance. This Motion to Dismiss was also never physically delivered to Logfret’s counsel, a failure that counsel for Respondents attributed as “both weather and federal government shutdown related.” As such, it was only on the following Wednesday, January 16, 2018, that counsel for Respondents made it known to Logfret that it intended to make a special appearance in this proceeding and to serve a Motion to Dismiss.

On January 29, 2019, Logfret submitted a Motion to Request Extension of Time to File Complainant’s Response to Motion to Dismiss, requesting an additional seven (7) days to submit

¹ On December 12, 2018, Ms. Sieval apparently emailed, with Mr. Bergwerff on copy, an FMC web address (judges@fmc.gov) stating, among other things, that the FMC had published home addresses and private email addresses of Ms. Sieval and Mr. Bergwerff, and urging the FMC to redact this information. On December 13, 2018, the Secretary of the FMC responded by removing the Complaint from the FMC website “as a courtesy for the time being” and advising Respondents to file a Motion to request confidentiality, which Respondents have not done. The Secretary of the FMC also advised that all documents in the proceeding must be filed in accordance with Rule 2 of the FMC Rules of Practice and Procedure (46 C.F.R. 502.2). *See Ex. 1.*

a response. The following day, on January 30, 2019, Your Honor determined the requested brief extension was reasonable and granted the seven-day extension, until February 7, 2019. On February 7, 2019, Logfret submitted a Motion to Amend Complaint, as well as a Motion for Extension of Time to File Complainant's Response in Opposition to Motion to Dismiss. On February 12, 2019, Your Honor issued an Order requiring Logfret to supplement the Motion to Amend Complaint with a memorandum of law supporting the motion as well as a proposed amended complaint. In the same Order, Your Honor granted the Motion for Extension of Time to allow Logfret to file the supplemental documents.

On Wednesday, February 20, 2019, the due date for the Amended Complaint and Memorandum of Support regarding same, the federal government offices in Washington, D.C., including the offices of the Federal Maritime Commission, were closed due to inclement weather. Rule 101 of the FMC Rules of Practice and Procedure, 46 C.F.R. § 502.101, states, "If the Commission's offices are inaccessible on the last day for a filing, the time for filing is extended to the first accessible day that is not a Saturday, Sunday, or Federal holiday." Given the closure of the FMC offices on February 20, 2019 and pursuant to FMC Rule 101, the Amended Complaint and Memorandum in Support are due on Thursday, February 21, 2019. As such, this Memorandum in Support of Motion to Amend Complaint is timely submitted.

DESCRIPTION OF THE AMENDED COMPLAINT

Since filing the initial Complaint, Logfret has discovered additional facts and allegations surrounding Respondents' misconduct during the relevant period in 2017 that Logfret wishes to include in its Complaint. The majority of these additional facts included in the Amended Complaint were learned in the days and weeks following Complainant's filing of its initial Complaint, and others were discovered more recently. In light of the additional information

discovered since its initial filing, Logfret proposes to amend the Complaint for the purpose of outlining additional facts, and including an additional count. Logfret also proposes including additional exhibits to the Amended Complaint to provide further substantiation of key factual allegations. Lastly, Logfret proposes amendment of its Complaint to clarify the jurisdictional bases upon which this proceeding is being brought before the Commission. The proposed Amended Complaint is attached hereto as Ex. 3.

DISCUSSION

Rule 66 of the FMC's Rules of Practice and Procedure (46 C.F.R. § 502.66) permits a party to request leave to amend its complaint or other pleading. In particular, Rule 66 states, "Amendments or supplements to any pleading (complaint, Order of Investigation and Hearing, counterclaim, crossclaim, third-party complaint, and answers thereto) will be permitted or rejected, either in the discretion of the Commission or presiding officer."² The Commission utilizes its discretion in such matters in a manner consistent with a longstanding and deeply entrenched doctrine allowing for liberal pleading standards to Shipping Act proceedings. See *Interconex, Inc. v. Fed. Mar. Comm'n*, 572 F.2d 27, 30 (2d Cir. 1978) ("[A] liberal attitude toward pleadings has been held specifically appropriate in FMC proceedings."); *Tak Consulting Eng'rs v. Bustani*, 28 S.R.R. 584, 589 (A.L.J. 1998) ("Pleadings in administrative proceedings are easily amendable, even more so than in federal courts, and are not considered to be critically important."); *Kawasaki Kisen Kaisha, Ltd. v. Intercontinental Exch., Inc.*, 28 S.R.R. 1411, 1412

² Rule 12 of the FMC's Rules of Practice and Procedure states, "In proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedures will be followed to the extent that they are consistent with sound administrative practices." (46 C.F.R. § 502.12.) In this case, FMC Rule 66 directly governs Logfret's Motion to Amend. Nevertheless, it is worth emphasizing the liberal nature of the counterpart rule of the Federal Rules of Civil Procedure. Fed. R. Civ. R. Rule 15 contemplates that a party may need to amend a complaint and provide rules governing such activity. The relevant provision in this case, Rule 15(a)(2), states that "a party may amend its pleading only with the opposing party's written consent or the court's leave. *The court should freely give leave when justice so requires.*" (emphasis added).

(A.L.J. 2000) (“Initial pleadings in administrative proceedings are designed to give notice and are not considered otherwise to be critical. It is not necessary for complainants to plead their evidence in their initial complaints and it is customary for the facts to be developed, among other ways, by means of discovery rules.”). This doctrinal adherence to a liberal pleading standard for proceedings before the FMC and other administrative agencies dovetails with legal commentary on the proper pleading requirements for administrative proceedings. *See, e.g.*, 2 Am. Jur. 2d Administrative Law § 285 (2015) (“Pleading requirements in administrative proceedings are traditionally more informal than judicial proceedings and are not held to the technical standards required in courts of law...Pleadings in administrative proceedings ordinarily are liberally construed.”).

Moreover, other administrative agencies have a similar pleadings standard. *E.g. Sec’y of Labor Mine Safety and Health v. New NGC Inc.*, Dkt. No. CENT 2013-538-M, 2013 WL 8505723, at *1 (F.M.S.H.R.C. Sept. 6, 2013) (Federal Mine Safety and Health Review Commission holding that “administrative pleadings are to be liberally construed and easily amended”); *Darrah v. Knowles, et al.*, CFTC No. 05-R042, 2013 WL 7155089, at *1 (C.F.T.C. Dec. 16, 2013) (Commodity Futures Trading Commission holding that “so long as a complaint provides a simple statement of the facts and a claim for relief, it is sufficient under Commission rules.”).

In this case, Logfret makes the proposed changes to the Complaint in the interest of (i) refining its factual allegations and alleged violations of the Shipping Act, as amended; (ii) providing Respondents and the Commission with fair notice regarding its allegations and their substantiation; and (iii) ensuring Logfret’s position to pursue adequate justice for damages suffered. Logfret respectfully submits that these objectives are reasonable, and in accord with

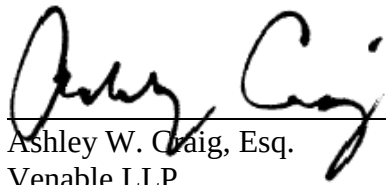
the Commission's established precedent permitting liberal amendments of complaints and other pleadings.

CONCLUSION AND RELIEF REQUESTED

For the reasons set forth above, Logfret respectfully requests that the Commission grant Complainant's Motion to Amend Complaint.

Dated at Washington, D.C. this 21st day of February 2019.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Ashley W. Craig", is written over a horizontal line.

Ashley W. Craig, Esq.
Venable LLP
600 Massachusetts Avenue, NW,
Washington, DC 20001
202-344-4351 (phone)
202-344-8300 (fax)
AWCraig@Venable.com

Counsel for Complainant

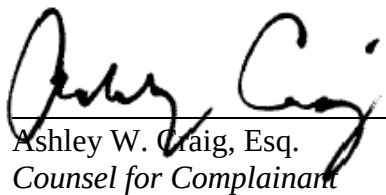
CERTIFICATE OF SERVICE

I hereby certify that I have this day served or caused to be served the foregoing document upon all parties noted below by electronically mailing a copy to each such person:

Carlos Rodriguez, Esq.
Sylvia Bartell, Esq.
Husch Blackwell, LLP
750 17th Street, N.W., 9th Floor
Washington, DC 20006
Carlos.Rodriguez@huschblackwell.com
Sylvia.Bartell@huschblackwell.com

Counsel for Respondents

Dated at Washington, D.C. this 21st day of February 2019.



Ashley W. Craig, Esq.
Counsel for Complainant

Exhibit 1

From: Rachel Dickon <Rdickon@fmc.gov>
Sent: Thursday, December 13, 2018 10:55 AM
To: lsieval@live.nl
Cc: hans.bergwerff@ziggo.nl; Craig, Ashley W.; Sudduth, Wes S.; Secretary
Subject: Fw: Docket No. 18-10

Dear Ms. Sieval,

I am writing regarding your email of yesterday sent to the Administrative Law Judges office, and including the attorneys for Complainants on my reply.

First, with regard to your concerns about your address information, we have removed the Complaint from our website as a courtesy for the time being to allow any issues to be resolved. Please see our procedural rules at [46 C.F.R. 502.2, 502.5, and 502.13](#) for information about confidentiality of information in FMC docket proceedings. You will need to file a Motion to request confidentiality.

Please also be advised, per the ALJ's Initial Order in the proceeding which you ought to have received, and per our rules, you must file documents in accordance with 46 C.F.R. 502.2. You should not correspond directly with the Judge, all filings should be made to secretary@fmc.gov, and you must copy Complainant's counsel.

Let me know if you have any further questions.

Sincerely,

Rachel E. Dickon
Secretary
Federal Maritime Commission
Ph 202-523-5725

From: linda sieval <lsieval@live.nl>
Sent: Wednesday, December 12, 2018 10:46 AM
To: Judges <judges@fmc.gov>
Cc: hans.bergwerff@ziggo.nl
Subject: Docket No. 18-10

Dear FMC,

To our surprise, we have received several documents from the FMC regarding a complaint in which Kirsha BV, Hans Bergwerff and Linda Sieval are stated as respondents.

Kirsha BV, Hans and I have spoken about these documents.

We have seen that you have published our home addresses and private email addresses on internet without requesting our consent.

This is in conflict with the regulations of the European Parliament and Council and we therefore urge you to blackout this personal information.

As you state in the communication we are Dutch nationals. We do not understand the complaint nor the information the FMC has sent us.

Regards,

Hans Bergwerff
Linda Sieval
Kirsha BV

Exhibit 2

HUSCH BLACKWELL

Carlos Rodriguez
Partner

750 17th St. N.W., Suite 900
Washington, DC 20006-4675
Direct: 202.378.2365
Fax: 202.378.2319
carlos.rodriguez@huschblackwell.com

MEMORANDUM

VIA COURIER

Date: January 16, 2019

To: Ashley Craig, Esq., Venable, LLP

From: Carlos Rodriguez

Re: Logfret v. Kirsha, B.V. et al (FMC Docket No. 18-10)

Ashely: Please see attached the Motion to Dismiss, Memorandum in support of the Motion, and Notices of Appearance for myself and Sylvia Bartell. Per ALJ Wirth's Order dated December 26, 2018, we submitted the attached via USPS Registered Mail, Return Receipt Requested on January 9, 2019. See attached the USPS tracking which indicates that this material for unexplained reasons has not yet been delivered. We believe that this might be both weather and federal government shutdown related. In any case, since per the above noted ALJ's Order, this would require a response from Logfret, Inc. within 15 days of service, please note that we would not object to taking today's date as the service date notwithstanding the attempted service via USPS. Please advise if this process raises any questions on your part.

Regards, Carlos

CR

Exhibit 3

**BEFORE THE
FEDERAL MARITIME COMMISSION**

LOGFRET, INC.,

Complainant,

v.

KIRSHA, B.V.,

Leendert Johannes BERGWERFF a/k/a Hans BERGWERFF,

LINDA SIEVAL,

Respondents.

Docket No. 18-10

VERIFIED AMENDED COMPLAINT

INTRODUCTION

1. Complainant Logfret, Inc. (“Logfret” or “Company”), by its attorneys at Venable LLP, hereby brings this Verified Complaint against Kirsha, B.V. and its principal Mr. Leendert Johannes Bergwerff, also known as Mr. Hans Bergwerff (hereinafter, “Mr. Bergwerff”), as well as Ms. Linda Sieval (hereinafter, “Ms. Sieval”) (collectively, “Respondents”), in accordance with Section 10(b)(13) of the Shipping Act of 1984, as amended (the “Shipping Act”), 46 U.S.C. § 40101 *et seq.*, and pursuant to the Federal Maritime Commission’s (“FMC[’s]”) authority under Section 11(a) of the Shipping Act, 46 U.S.C. § 41301(a), in response to Respondents’ violations of the Shipping Act.

2. Complainant alleges, upon information and belief, the following:

NAMED PARTIES AND OTHER ENTITIES

3. Complainant Logfret is a corporation organized and existing under the laws of the State of Delaware, with its principal place of business at 6801 Westside Avenue, North Bergen, New Jersey 07047.

4. Logfret is a non-vessel-operating common carrier (“NVOCC”) that provides transport, logistics and related shipping services to customers in the United States and worldwide. Logfret is licensed by the FMC as an NVOCC and freight forwarder, *i.e.* as an Ocean Transportation Intermediary (“OTI”), under license no. 007636, pursuant to 46 C.F.R. Part 520 of the Federal Maritime Commission Regulations.

5. Logfret is a wholly-owned subsidiary of Logfret Group, a non-US company whose sole non-US parent is Logistique Holding SAS.

6. Complainant Logfret is an affiliate of Logfret, B.V., a company organized under the laws of The Netherlands and headquartered at Ringdijk 366, 2983 GR Ridderkerk, The Netherlands. Logfret, B.V. is a Dutch common carrier that is not registered with the FMC and is not intended to or authorized to operate in the foreign commerce of the United States. .

7. Mr. Bergwerff, a Dutch national, was Managing Director of Logfret B.V. from March 28, 2006 until the termination of his employment on May 12, 2017.

8. The physical address for Mr. Bergwerff is Noordersingel 78, 2993 TA Barendrecht, The Netherlands. The email address for Mr. Bergwerff is hans.bergwerff@ziggo.nl.

9. Ms. Sieval, a Dutch national, was a sales manager for Logfret B.V. until the termination of her employment on March 1, 2018.

10. The physical address for Ms. Sieval is Blauwkarper 10, 2318 Leiden, The Netherlands. The email address for Ms. Sieval is lsieval@live.nl.

11. Kirsha, B.V. is a corporation organized and existing under the laws of The Netherlands, with its principal place of business at Noordersingel 78, 2993 TA Barendrecht, The Netherlands.

12. The owner and managing director of Kirsha, B.V. is Mr. Bergwerff, who exercises signatory authority and direct control over Kirsha, B.V.

13. Mr. Bergwerff is also Country Manager for BeNeLux at Visa Global Logistics B.V., a Dutch company headquartered at Deventerseweg 6, 2994 LD Barendrecht, The Netherlands.

14. Delmar International Inc. is a Canadian NVOCC and logistics company headquartered at 10636 Chemin de la Côte-de-Liesse, Montreal, QC H8T 1A5, Canada. Delmar International Inc. is not registered with the FMC as a foreign NVOCC.

15. Delmar International (N.Y.) Inc. d/b/a Delmar International (USA) (“Delmar USA”) is a U.S. subsidiary of Delmar International Inc. Delmar USA is organized under the laws of the State of New Jersey and is headquartered at One Cross Island Plaza, Suite 227, Rosedale, New Jersey 11422.

16. Delmar USA has offices at, among other places, 1691 Phoenix Boulevard, Suite 300, Atlanta, GA 30349 USA.

17. Delmar USA is licensed by the FMC as an NVOCC and freight forwarder under FMC License No. 004031, pursuant to 46 C.F.R. Part 520 of the Federal Maritime Commission Regulations.

JURISDICTION

18. The FMC has subject matter jurisdiction over this action pursuant to the Shipping Act of 1984, 46 U.S.C. § 40101 *et seq.*

19. The FMC has personal jurisdiction over Mr. Bergwerff as a “common carrier” defined at 46 U.S.C. § 40101.

20. The FMC has personal jurisdiction over Ms. Sieval as a “common carrier”

defined at 46 U.S.C. § 40101.

21. The FMC has personal jurisdiction over Respondent Kirsha B.V. as a “common carrier” defined at 46 U.S.C. § 40101.

22. The FMC may award payment of reparations for actual injury caused by a violation of the Shipping Act, pursuant to the filing of a sworn complaint alleging same and filed within three (3) years of accrual of the claim. 46 U.S.C. §§ 41301, 41305.

MEMORANDUM OF THE FACTS

23. On or about March 28, 2006, Mr. Bergwerff assumed day-to-day responsibility and control of Logfret B.V. as Managing Director of Logfret B.V.

24. As part of his becoming Managing Director of Logfret B.V., Mr. Bergwerff negotiated that his salary be paid directly to Kirsha B.V.

25. During Mr. Bergwerff’s tenure at Logfret B.V., Mr. Bergwerff, Ms. Sieval, and Kirsha B.V. committed numerous unethical and illegal activities with respect to the management and governance of Logfret B.V., including but not limited to improper leasing and refurbishment of new offices, improper accession to a new management agreement, and misappropriation of Logfret B.V. assets. *See* Ex. 1 (February 20, 2019 Declaration of Jean Francois Millet).

26. Among the many illegal acts committed by Respondents were a number of violations of the Shipping Act, as amended, to the irreparable detriment and prejudice of Logfret.

27. On at least one occasion, on January 5, 2017, Mr. Bergwerff and Ms. Sieval used a fictitious entity, “Logfret Cargo Line,” to issue a fraudulent bill of lading for a shipment from The Netherlands to the United States. Mr. Bergwerff and Ms. Sieval used as delivery agent for the shipment Deltrans International Shipping Corp., c/o Delmar USA. *See* Ex. 1 and Ex. 2 (“Logfret Cargo Line” bill of lading, dated January 5, 2017).

28. “Logfret Cargo Line” is not an existing entity, and is not licensed or registered with the FMC. *See* Ex. 1

29. Mr. Bergwerff, Ms. Sieval, and Krisha B.V. fraudulently used Logfret B.V. as a means of handling logistics and administration of the aforementioned shipment, including invoicing and personnel support.

30. In arranging and benefiting from the provision of ocean transportation of cargo from The Netherlands to the United States via the fictitious and unregistered entity “Logfret Cargo Line,” Mr. Bergwerff, Ms. Sieval, and Kirsha B.V. acted as *de facto* “common carriers” within the definition at 46 U.S.C. § 40101 and “non-vessel-operating common carriers” within the definition at 46 U.S.C. § 40101.

31. On or about February 4, 2017 to February 6, 2017, Mr. Bergwerff and Ms. Sieval traveled to Montreal, Canada, to meet with executives at Delmar International Inc. to discuss the ongoing business relationship between Logfret B.V., Delmar International Inc. and the branch offices of its subsidiary, Delmar USA. In particular, Mr. Bergwerff and Ms. Sieval discussed a plan with Delmar International Inc. whereby Mr. Bergwerff and Ms. Sieval would use the infrastructure, employees, and resources of Logfret B.V., in coordination with Delmar USA branch offices, to issue Delmar USA bills of lading for inbound shipments to the United States. *See* Ex. 3 (Montreal plane fare receipt and Montreal hotel receipt for Mr. Bergwerff and Ms. Sieval).

32. On or about February 28, 2017, Mr. Bergwerff, with the help of Ms. Sieval, directed the staff of Logfret B.V. to handle inbound shipments to the United States through Delmar USA rather than Logfret, for at least two accounts. *See, e.g.,* Ex. 4 (Meeting Notes for February 28, 2017 sales meeting – Dutch original) (highlights added for emphasis); Ex. 5

(Meeting Notes for February 28, 2017 sales meeting – English translation) (highlights added for emphasis).

33. For months thereafter, Mr. Bergwerff and Ms. Sieval knowingly received information about the nature, kind, quantity, and destination of cargo tendered or delivered to Logfret, B.V. with the intent to be shipped to the United States on Logfret bills of lading.

34. Mr. Bergwerff and Ms. Sieval used this information to unlawfully route inbound shipments away from Logfret toward Delmar USA, a competing common carrier and NVOCC. As part of these unlawful activities, Mr. Bergwerff and Ms. Sieval unlawfully and improperly disclosed the same information regarding these inbound shipments to Delmar USA.

35. On April 14, 2017, Mr. Marc Millet, Président du directoire of Logistique Holding SAS, issued a letter to Logfret B.V. (Attn: Hans Bergwerff) and Kirsha B.V. (Attn: Hans Bergwerff), which among other things, set forth an understanding that Mr. Bergwerff had directed employees of Logfret B.V. to enter into transportation arrangements with competitors of the Logfret Group's companies and affiliates. *See* Ex. 6 (April 14, 2017 Letter from Logistique Holding SAS to Logfret B.V. and Kirsha B.V. (Attn: Hans Bergwerff)).

36. On April 24, 2017, the Atlanta Branch Manager for Logfret sent an email to the Chief Financial Officer (CFO) of Logfret, confirming that Mr. Bergwerff and Ms. Sieval had completely stopped sending a high-volume account to Logfret, along with "all other NL [Netherlands] business." *See* Ex. 7 (April 24, 2017 email from K. Memmler to K. Mistri).

37. On or about April 25, 2017, the Atlanta Branch Manager for Logfret sent a follow-up email to the CFO of Logfret, confirming that Mr. Bergwerff and Ms. Sieval had moved another inbound shipment to the United States via Delmar USA. *See* Ex. 8 (April 25, 2017 email from K. Memmler to K. Mistri).

38. During the course of their improper activities, Mr. Bergwerff, Ms. Sieval, and Kirsha B.V. continued to make improper and fraudulent use of a “Logfret Cargo Lines” bill of lading to provide transportation of cargo from The Netherlands to the United States.

39. Respondents’ unlawful activities continued until at least May 12, 2017, when Mr. Bergwerff was dismissed by the Logfret Group general meeting as Managing Director of Logfret B.V. *See* Ex. 1.

40. As a direct consequence of the unlawful conduct in which Respondents engaged, Logfret has been harmed and prejudiced in a number of ways, including suffering the loss of past and current revenue as well as loss of reputation, all of which has caused Logfret significant damages of at least \$2,000,000.

CAUSES OF ACTION

COUNT I: VIOLATION OF 46 U.S.C. § 41104

41. Complainant Logfret incorporates by reference each of the facts and allegations stated in paragraphs 1 through 40 as though set forth herein.

42. 46 U.S.C. § 41104 states, in relevant part, “[a] common carrier, either alone or in conjunction with any other person, directly or indirectly, may not—(1) allow a person to obtain transportation for property at less than the rates or charges established by the carrier in its tariff or service contract by means of false billing, false classification, false weighing, false measurement, or any other unjust or unfair device or means...”

43. During a period from at least January 2017 to May 2017, Mr. Bergwerff and Ms. Sieval, with the direct involvement of Kirsha B.V., issued one or more fraudulent bills of lading under the name “Logfret Cargo Lines” that for inbound shipments into the United States. Cargo rates and charges for these shipments relied on figures negotiated between Logfret B.V. and the

underlying carrier.

44. In arranging and benefiting from the provision of the ocean transportation, Mr. Bergwerff, Ms. Sieval, and Kirsha B.V. acted as *de facto* “common carriers” within the definition at 46 U.S.C. § 40101 and “non-vessel-operating common carriers” within the definition at 46 U.S.C. § 40101.

45. In so doing, Mr. Bergwerff, Ms. Sieval, and Kirsha B.V. allowed the shipper of the cargo moving on the fraudulent bill of lading to obtain transportation for property at less than the rates that would have otherwise applied if the shipper had obtained transportation from the underlying carrier under another rate, such as its tariff rate. Such conduct violates 46 U.S.C. § 41104.

46. As a result of the violation or violations, Logfret sustained financial and reputational harm in the United States.

COUNT II: VIOLATION OF 46 U.S.C. § 41103(a)

47. Complainant Logfret incorporates by reference each of the facts and allegations stated in paragraphs 1 through 40 as though set forth herein.

48. 46 U.S.C. § 41103(a) prohibits, “[a] common carrier, marine terminal operator, or ocean freight forwarder, either alone or in conjunction with any other person, directly or indirectly, [from] knowingly disclos[ing], offer[ing], solicit[ing], or receiv[ing] any information concerning the nature, kind, quantity, destination, consignee, or routing of any property tendered or delivered to a common carrier, without the consent of the shipper or consignee, if the information—(1) may be used to the detriment or prejudice of the shipper, the consignee, or any common carrier; or (2) may improperly disclose its business transaction to a competitor.”

49. Between March 1, 2017 and May 12, 2017, Mr. Bergwerff and Ms. Sieval, with

the direct involvement of Kirsha B.V., knowingly received information about the nature, kind, quantity, and destination of cargo tendered or delivered to Logfret, B.V., the issuer of the bill of lading. Respondents knowingly and improperly disclosed information regarding these shipments to at least one competing common carrier and NVOCC, Delmar USA.

50. Furthermore, Mr. Bergwerff and Ms. Sieval, with the direct involvement of Kirsha B.V., used this information to the detriment and disadvantage of Logfret, a common carrier and NVOCC, by unlawfully engaging with Delmar USA for inbound shipments to the United States, rather than engaging with Logfret.

51. As a result of these repeated violations of 46 U.S.C. § 41103(a), Logfret sustained financial and reputational harm in the United States.

INJURY SUFFERED BY LOGFRET

52. Logfret has been actually and materially injured by Respondents, namely, Kirsha B.V., Mr. Bergwerff, and Ms. Sieval, as alleged above. Specifically, Logfret has suffered financial damages of at least \$2,000,000 as a direct result of Respondents' repeated violations of 46 U.S.C. §§ 41104 and 41103(a), and as may be further demonstrated in this proceeding.

PRAYER FOR RELIEF

WHEREFORE, Logfret respectfully prays for relief from the Commission as follows:

1. An Order compelling Respondents to answer the charges made herein and scheduling a hearing in Washington D.C. during which the Commission may receive evidence in this matter;
2. An Order, after due investigation and hearing, finding Respondents to have violated §§ 41104 and 41103(a), and as may be further demonstrated in this proceeding;
3. An Order compelling Respondents to cease and desist its activities in violation of

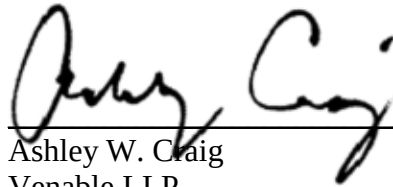
the Shipping Act, as amended, as alleged herein;

4. An Order awarding Logfret damages in the amount of \$2,000,000 to be proven under 46 U.S.C. § 41305, interest under 46 U.S.C. § 41305(a), and reasonable attorneys' fees under 46 U.S.C. § 41305(e); and

5. Such other and further relief as the FMC determines to be just and proper.

Dated: February 21, 2019

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Ashley W. Craig", is written over a horizontal line.

Ashley W. Craig
Venable LLP
600 Massachusetts Avenue, N.W.
Washington, DC 20001
Telephone: (202) 344-4351
Facsimile: (202) 344-8300
awcraig@venable.com

Counsel for Complainant Logfret, Inc.

VERIFICATION

Mr. Jean Francois Millet, being first duly sworn to oath, deposes and states that he is Chairman of Logfret, Inc., that he has read the foregoing Verified Complaint, and that the facts stated therein he believes to be true on information and belief and upon information received from others.

Dated: February 20, 2019



Jean Francois Millet
Chairman
Logfret, Inc.
North Bergen, New Jersey, USA

Exhibit 1

**BEFORE THE
FEDERAL MARITIME COMMISSION**

LOGFRET, INC.,

Complainant,

v.

Docket No. 18-10

KIRSHA, B.V.,
Leendert Johannes BERGWERFF a/k/a Hans BERGWERFF,
LINDA SIEVAL,

Respondents.

DECLARATION OF JEAN FRANCOIS MILLET

I, Jean Francois Millet, declare under penalty of perjury that the following is true and correct:

1. I am the Chairman of Logfret Group and Logfret, Inc.
2. I have direct knowledge that, during Mr. Bergwerff's tenure at Logfret B.V., Mr. Bergwerff, with the assistance of Ms. Sieval and Kirsha B.V., committed numerous unethical and illegal activities with respect to the management and governance of Logfret B.V., including improper leasing and refurbishment of new offices, improper accession to a new management agreement, and misappropriation of Logfret B.V. assets.
3. I have direct knowledge that, on at least one occasion, Mr. Bergwerff used a fictitious entity, "Logfret Cargo Line," to issue a fraudulent bill of lading for a shipment from The Netherlands to the United States.
4. I have direct knowledge that "Logfret Cargo Line" is not an existing entity.
5. I have direct knowledge that Mr. Bergwerff was dismissed by the Logfret Group general

meeting as Managing Direct of Logfret B.V. on May 12, 2017.

Dated: February 20, 2019

A handwritten signature in black ink, appearing to read 'Jean Francois Millet', written over a horizontal line.

Jean Francois Millet
Chairman
Logfret, Inc.
North Bergen, New Jersey, USA

Exhibit 2

OCEAN BILL OF LADING

SHIPPER EXPORTER EVODOS B.V WEEGBREE 21 4941 VT RAAMSDONKSVEER THE NETHERLANDS PH: +31765711170		Bill of lading no. SRTME000413	Container No.
		EXPORT REFERENCES DELIVERY NO. 90121-1	
CONSIGNEE UNC WILMINGTON MARVIN K MOSS LANE 5598 BIOTECH BUILDING NC 28409 WILMINGTON USA		FORWARDING AGENT - REFERENCES	
		PIER	
NOTIFY PARTY SAME AS CONSIGNEE CTC DAN BADEN		PRE CARRIAGE BY (domestic routing/export instructions)	
PLACE OF RECEIPT (Point and country of Origin) ROTTERDAM, NL		PLACE OF DELIVERY (Onward Inland Routing) DDP WILMINGTON	
OCEAN VESSEL CHARLESTON EXPRESS V.7P04	PORT OF LOADING ROTTERDAM		
PORT OF DISCHARGE CHARLESTON, SC	FOR TRANSHIPMENT TO		

PARTICULARS FURNISHED BY SHIPPER				
MARKS AND NUMBERS	NO. OF PKGS	DESCRIPTION OF PACKAGES AND GOODS	WEIGHT	MEASUREMENT
PARTLOAD OF ACLU972228-2/ANT004778	1 X PACKAGE	STC: T10 MACHINE # 091 HS CODE: 8421210000 COUNTRY OF ORIGIN: THE NETHERLANDS <u>Freight Prepaid</u>	835 KGS	2.445 CBM
LCL/ LCL SLAC				

FOR DELIVERY PLEASE APPLY TO:
DELTRANS INTERNATIONAL SHIPPING CORP.
C/O DELMAR INTERNATIONAL(N.Y.) INC.
1691 PHOENIX BOULEVARD, SUITE 300
ATLANTA GEORGIA, 30349
USA

IN ACCEPTING THIS BILL OF LADING, the Shipper, Consignee, Holder hereof, an Owner of the Goods, Agree to be bound by all of its stipulations, exceptions and conditions, whether written, printed or stamped on the front or back hereof, as well as the provisions of the above Carrier's published Tariff rules and regulation, as if there were all signed by such Shipper, Consignee, Holder or Owner and it is further agreed that Containers may be stowed on deck, as per Clause 7.

IN WITNESS WHEREOF, the Carrier or its Agents has affirmed to ISSUE bills of lading, all of this tenor and date, ONE of which being accomplished the others to stand void;

IN CONNECTION WITH FREIGHT, SEE CLAUSE
15 and 3 OF THIS BILL OF LADING

[illegible]

Z.I. du Coudray - 2, rue Copernic- 93605 AULNAY-SOUS-BOIS cedex- France
Tel : (1) 49 39 68 40/44 - Fax : (1) 49 39 68 48

BY ANDRE CONRADS

DATED AT 01/05/2017, RIDDERKERK

BILL OF LADING

Originals : 0
Copies : 0
Seaway : 1

Exhibit 3



LOEWS

HÔTEL VOGUE
MONTRÉAL

1425 rue de la Montagne, Montreal, Qc. Canada H3G 1Z3
Telephone/Telephone: (514) 285-5555 Telecopieur/Fax: (514) 849-8903
Sans frais/Toll free: (866) 563-9792

Mr. Leendert Bergwerff
Ringdijk 366
Ridderkerk 2983GR
Netherlands

Chambre/Room: **614**
Arrivee/Arrival: **02-04-17**
Depart/Departure: **02-06-17**
Page No.: **1 of 2**
No. de facture/Folio No.:
No. de Reservation/Conf. No.: **17110607**
Caissier/Cashier: **1091**

FOLIO CLIENT/GUEST FOLIO

Date	Description	Charges/Debit	Credit/Credit
02-04-17	La Societe Restaurant	Room# 612 : CHECK# 1639 Routed From Bergwerff Leendert Of Room #612	108.88
02-04-17	Chambre - Room	Bergwerff Leendert #314=>Bergwerff Leendert #614	319.00
02-04-17	Taxe Hebergement / Occ Tax 3.5PCT	Bergwerff Leendert #314=>Bergwerff Leendert #614	11.17
02-04-17	TPS Chambre-Room GST 5PCT	Bergwerff Leendert #314=>Bergwerff Leendert #614	16.51
02-04-17	TVQ Chambre-Room PST - 9.975PCT	Bergwerff Leendert #314=>Bergwerff Leendert #614	32.93
02-04-17	Chambre - Room		319.00
02-04-17	Taxe Hebergement / Occ Tax 3.5PCT		11.17
02-04-17	TPS Chambre-Room GST 5PCT		16.51
02-04-17	TVQ Chambre-Room PST - 9.975PCT		32.93
02-05-17	La Societe Restaurant	Room# 612 : CHECK# 1640 Routed From Bergwerff Leendert Of Room #612	51.19
02-05-17	La Societe Restaurant	Room# 612 : CHECK# 1640 Routed From Bergwerff Leendert Of Room #612	14.20
02-05-17	Minibar	003788520170205180848	6.90
02-05-17	Chambre - Room	Bergwerff Leendert #314=>Bergwerff Leendert #614	319.00
02-05-17	Taxe Hebergement / Occ Tax 3.5PCT	Bergwerff Leendert #314=>Bergwerff Leendert #614	11.17
02-05-17	TPS Chambre-Room GST 5PCT	Bergwerff Leendert #314=>Bergwerff Leendert #614	16.51
02-05-17	TVQ Chambre-Room PST - 9.975PCT	Bergwerff Leendert #314=>Bergwerff Leendert #614	32.93
02-05-17	Chambre - Room		319.00
02-05-17	Taxe Hebergement / Occ Tax 3.5PCT		11.17



LOEWS

HÔTEL VOGUE
MONTRÉAL

1425 rue de la Montagne, Montreal, Qc. Canada H3G 1Z3
Telephone/Telephone: (514) 285-5555 Telecopieur/Fax: (514) 849-8903
Sans frais/Toll free: (866) 563-9792

Mr. Leendert Bergwerff
Ringdijk 366
Ridderkerk 2983GR
Netherlands

Chambre/Room: **614**
Arrivee/Arrival: **02-04-17**
Depart/Departure: **02-06-17**
Page No.: **2 of 2**
No. de facture/Folio No.:
No. de Reservation/Conf. No.: **17110607**
Caissier/Cashier: **1091**

FOLIO CLIENT/GUEST FOLIO

02-05-17	TPS Chambre-Room GST 5PCT	16.51	
02-05-17	TVQ Chambre-Room PST - 9.975PCT	32.93	
02-06-17	American Express XXXXXXXXXXXX1008		1,699.61

J'ai accepte la livraison du Globe and Mail. Si refuse, mon compte sera credite de 1,00\$ (lundi au vendredi) ou de 2,00\$ (samedi).

I have accepted delivery of the Globe and Mail. If refused a \$1.00 (Mon. to Fri.) and \$2.00 (Sat.) credit will be applied to my account.

Total	1,699.61	1,699.61
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Solde/Balance Due	0.00
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TPS/GST Sommaire/Summary

Chambre/Room 5%	66.04
N&B/F&B 5%	0.30
Autre/Other 5%	0.00

TVQ/PST Sommaire/Summary

Chambre/Room 9.975%	131.72
N&B/F&B 9.975%	0.60
Autre/Other 9.975%	0.00

TPS: R140411794

TVQ:1017622788

Signature du client/Guest Signature



Logfret Netherlands BV
Ringdijk 366
2983 GR Barendrecht

BTW nr.: NL815496850B01

Schiphol, 17 februari 2017

Factuur nr.: NL1702417
Debiteur nr.: R150041

Factuur

Voor akkoord: 
Crediteurnr.:
Boekstuknr.: 1225
Rekeningnr.: 6097.00.00
Periode:
Betaling:



KLM Cargo
P.O. Box 7700
1117 ZL Schiphol

BTW nr.: NL004983269B01
KvK nr.: 33014286

E-mail ssc-spl.invoicing@afklcargo.com

IBAN EUR: NL80INGB0007208784
Swift EUR: INGBNL2A
IBAN USD: NL15INGB0020160909
Swift USD: INGBNL2A

Customer	Ticket nr	Passanger	Route	Start Travel Date	Fare amount	Taxes	Net amount
LOGFRETND	742404678810	BERGWERFF/LEENDERTMR	AMS YUL AMS	04-02-17	1,187.00	421.54	1,608.54
LOGFRETND	742404678811	SIEVAL/LINDAMRS	AMS YUL AMS	04-02-17	1,187.00	421.54	1,608.54

1
MONTREAL

Factuur totaal in EUR 3,217.08

Bij betaling en/of correspondentie a.u.b. factuurnummer en referentie vermelden.
Betaling binnen 30 dagen, tenzij anders overeengekomen

Exhibit 4

Verslag Salesmeeting 28-02-2017

Aanwezig: Linda Sieval, Kimberly Deelen, Kirsten Bergwerff (NOT), Frido Brouwers, Marco Croes Afwezig: Hans Bergwerff Gastspreeker: Martijn van der Zweth		
	Agenda	Actie
1. Analyse Logfret / MTLS offertes.	MTLS heeft een terugloop in aantal offertes. Vanaf heden zal dat nog meer terug lopen door het vertrek van Arjan. Er wordt geen actieve acquisitie meer gedaan door MTLS en er zal volledig gefocust worden op de bestaande klanten en customer service. LF boekingspercentage: 26,37% MTLS: 11,63% Voor de rest van de cijfers verwijzen we u naar de analyse week 7 & 8.	
2. Notulen vorige meeting	Notulen van vorige meeting zijn goed gekeurd op een aantal actiepunten na. Actiepunten: Er wordt op het moment toch geboekt bij van der Most door operations, ondanks dat de instructie van sales anders is. Dit is omdat van der Most een dag eerder uithaalt en vooral voor de AMS filing is dat handig. LS geeft aan dat we het voortransport op Dalenburg moeten blijven baseren. Mocht de zending bij van der Most geboekt worden, komt operations vanzelf terug met dat de inkoop niet klopt. Operations heeft bij de sales-operations meeting aangegeven meer te willen barge. Vanaf nu duidelijk in Zurmo en in de e-mail naar operations vermelden als de klant NIET met de barge wil vervoeren.	
3. WVTTK	LS vraagt hoe het vertrek van JJ en AK aankomt. Iedereen beaamt dat het eraan zat te komen mbt JJ. Er wordt door LS aan iedereen gevraagd hoe ze de plek van JJ graag 'vervangen' zien worden. Zowel KD, KB en MC geven voorkeur aan een salessupport, i.p.v. Inside Sales. KB: SV en HB zullen voor eind maart een lijst van agenten opstellen die Inside Sales NIET hoeft te offren om verschillende redenen (benchen, altijd te duur etc.) LS: Nieuwe rol KD. Salessupport + Inside Sales en 10% E-commerce. Kim zal Linda, Marco en Kirsten waar mogelijk ondersteunen. De offertes van bestaande klanten (en bestaande trajecten) kunnen opgesteld worden door Kim. Wel duidelijke instructies geven over hoe en wat en niet klakkeloos over de schutting gooien. KD zal vanaf heden ook de back-up zijn voor de QT. Kim werkt aan een handleiding van de QT. De agentaanvragen blijven verdeeld tussen KB en KD. Klanten Jo-Ann zijn verdeeld onder MC, KD en KB. LS: per heden alles overzetten van LF US naar Delmar. Let op de klanten waarvoor een bond ingericht is via LF US, deze dient bij Delmar ingericht te worden, Wachten met de bond aanmaken tot er een DDP zending aankomt. Er dient 2x een POA ingevuld te worden, dit kost wat tijd. MC merkt op dat bij het 2^e formulier alles al ingevuld is en alleen een handtekening vereist is. De minimale P/S Delmar is USD. 50,00 voor een 20'ft en USD. 75,00	

	voor een 40'ft met een maximum van USD. 300,00 per B/L. LS: Let op met boekingen export Far East. Alles zit overvol (lees april pas ruimte). Eerst ruimte zoeken, dan pas quoten. LS: Logfret Noord China (Shanghai etc.) graag ontwijken. Normaliter altijd benchen met ADS maar op het moment graag alles boeken met ADS. Momenteel een 'akkefietje' betreft geldzaken. LS: Als er een offerte gemaakt wordt in de QT, wordt er automatisch een taak aangemaakt in Zurmo (offerte opvolgen). Mocht je voor 1 klant 3 offertes maken, dan bel je natuurlijk maar 1x na. De overige taken kan je op type taak "overig – opvolgen offerte" afronden. LS: Als er bij Cosco voor export CFR zendingen om een seaway bill gevraagd wordt, moet de shipper ineens garant staan voor alle lokale kosten @ destination. Cosco plaatst zich daarmee onderaan de keuzelijst van de rederijen. MC: Synthos tender uitgebracht voor 2500 TEU per jaar. Voortransport vanaf 3 laadplaatsen. 2 geroute via Antwerpen en 1 via R'dam. MC zit te denken aan een boeking fee van EUR. 27,50 en een marge op het voortransport van circa EUR. 50,00/EUR. 65,00. De rest vindt dat een goed idee. MC: S-Lec offrenen naar Nagoya. Vragen een geldigheid van 01/04/17 t/m 31/03/18!! Wordt lastig, maar MC geeft aan toch altijd subject space te noteren. MC: Volgende week beurs Düsseldorf, mengelmoes van allerlei commodities. FB: Opmerking nieuwe website: zodra je vorige kiest op je telefoon of laptop, verdwijnt de r bij dienstverlener. LS gaat een melding maken. FB: Boxberry de laatste puntjes op de i. moeten nog een aantal details uitgewerkt worden. Boxberry heeft een andere manier van sales, ze versturen naar iedereen de prijzen. Ook is FB bezig met UPS/MSX contract. Volgende week een klein beursje/symposium in A'dam van cross- border commerce. KB: geen punten KD: geen punten MZ: Vanaf heden zal MZ alle aanvragen behandelen van MTLS. Focus ook op afhandeling dossiers. Door de krapte van de markt op Noord Amerika ontvangt MTLS veel aanvragen maar bestaande supporters van MTLS (Pega, Logfret) krijgen voorrang. Betreft de tarieven naar Noord Amerika vooralsnog een geldigheid t/m 31/03/17. Carriers zijn voorzichtig met noteren. Als er op korte termijn gevaren moet worden, overleggen met MTLS zodat er gekeken kan worden welke rederij er ruimte heeft. Dan kan sales gelijk de offerte op de goede carrier baseren. K-Line heeft de PSS ingetrokken, vermoedelijk door een mislopen van een aantal tenders. Zelfde geldt voor MOL want die durven tarieven met een langere geldigheid af te geven. CMA	
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	houdt wel de PSS aan. USD. 150,00/USD. 200,00 op de East coast + Gulf. Er wordt momenteel voorkeur gegeven door de carriers om via havens in Duitsland en Frankrijk te varen omdat die tarieven hoger liggen. GH reserveert wel slots momenteel bij een aantal rederijen. Mocht MTLS de reserveringen niet vol krijgen, dan laten ze die vervallen circa 2 dagen voor AMS closing vervallen, zodat de carrier zelf de ruimte kan gebruiken en daarmee geen irritatie creëren. HMM gaat stoppen met de west kust door samenwerking MSC en Maersk met de nieuwe allianties. CMA gaat wel direct. ACL en Hapag moeten in gesprek voor de afvaarten vanaf Rotterdam richting Halifax. Mocht ACL niet meer met Hapag kunnen varen vanaf Rotterdam, wellicht op zoek gaan naar een Barge tussen Rotterdam en Antwerpen? MZ wil weer tenders uitsturen om daarmee contracten af te sluiten i.p.v. bullit prijzen. MZ: Voor Cargo Office kunnen de DAP tarieven voor de 1tjes en 2tjes gebaseerd worden op HMM/YM en UASC. MZ: Aanvulling Delmar: MTLS gaat ook met de house B/L werken van Delmar. Delmar rekent USD. 30,00 voor een HBL en USD. 15,00 voor ISF filing Hier dus spaarzaam mee om gaan. Vooralsnog liever geen HBL met MOL en NYK. MC: Vraagt zich af wat FB momenteel aan het doen is. FB antwoord met dat hij bezig is met het contract van UPS en dat hij een document heeft gehad van Boxberry wat vertaald moet worden. Verder merkt MC op dat FB slecht te bereiken valt en niemand weet waar hij is.	
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Aktiepunten te bespreken volgende sales meeting

Aktie	Wie	Status	Deadline
Ontwikkelingen E-commerce / Russische markt in kaart brengen.	Hans		2017
Opvolgen zendingen, status bespreken met SV en DvB	Linda		Week 14
Delmar informatie contactpersonen delen	Linda		Week 10

Exhibit 5

Sales Meeting Report 28-02-2017

Present: Linda Sieval, Kimberly Parts, Kirsten Bergwerff (NOT), Frido Brouwers, Marco Croes Absence: Hans Bergwerff Guest speaker: Martijn van der Zweth		
	Agenda	Action
1. Logfret Analysis / MTLS tenders.	MTLS has experienced a decline in the number of tenders. As of today, it will decline even further because of Arjan's departure. No active acquisition will be made any more by MTLS, and the complete focus will be on existing customers and customer service. LF booking rate: 26.37% MTLS: 11.63% For the rest of the figures, please refer to the analysis of week 7 & 8.	
2. Minutes of previous meeting	Apart from a few action points, the minutes of the previous meeting has been approved. Action points: At the moment, Van der Most is being booked by the operations department, despite the fact that the instruction of the sales department is different. This is because van der Most finished a day earlier, and for the AMS filing that is especially useful. LS indicates that we must continue to base the pick-up and delivery transport at Dalenburg. Should the shipment be booked at van der Most, operations will automatically give feedback that the procurement is not correct. Operations indicated at the sales-operations meeting that it would like to make greater use of barges. From now on, clearly mention in Zurmo and in the email to operations if the customer does NOT want to transport with the barge.	
3. WVTTK	LS asks why JJ and AK are leaving. Everyone agrees that JJ's departure was apparent. LS asks everyone how they would like to have JJ 'replaced'. KD, KB and MC gives preference to the idea of sales support, instead of Inside Sales. KB: By the end of March, SV and HB will compile a list of agents who do NOT have to propose the use of Inside Sales, for several reasons (benching, always overpriced, etc.) LS: New role of KD. Sales Support + Inside Sales and 10% E-commerce. Kim will support Linda, Marco and Kirsten wherever possible. Kim can compile the tenders of existing customers (and existing routes). However, give clear instructions about how and what, and don't just do it indiscriminately. As of today, KD will also be the back-up for the QT. Kim is working on a QT manual. The agent applications remain distributed between KB and KD. Jo-Ann Customers are distributed among MC, KD and KB. LS: Transfer everything from LF US to Delmar. Take note of the customers for whom a union has been established via LF US, this should be arranged at Delmar. Put the union	

	creation on hold until a DDP shipment arrives. 2x POA must be filled in, this will take some time. MC notes that in the 2nd application form everything has already been completed and only a signature is required. The minimum Delmar P / S is USD. 50.00 for a 20'ft and USD. 75.00 for a 40'ft with a maximum of USD. 300.00 per B / L. LS: Take note of export bookings for the Far East. Everything is overcrowded (no space until April). First look for space, and then only quote. LS: Avoid Logfret North China (Shanghai etc.). Normally always bench with ADS, but at the moment please book everything with ADS. Currently there's a bit of a problem concerning the finances. LS: If a quote is made in the QT, a job will automatically be created in Zurmo (follow-up quote). If you give 3 quotes for 1 customer, then you follow up 1x. The remaining tasks can be completed under the "other - follow-up quote" task type. LS: For Cosco, if a seaway bill is requested for CFR export shipments, the shipper must be responsible for all local costs @ destination. As a result, Cosco becomes the least preferred shipping company. MC: Synthos tender has been placed for 2500 TEU per year. Pick-up and delivery from 3 loading locations. 2 are routed via Antwerp and 1 via R'dam. MC is considering a EUR booking fee. 27.50 and a margin on the pick-up and delivery of about EUR. 50.00/EUR. The rest think that's a good idea. MC: S-Lec quotes to Nagoya. Ask for a validity of 01/04/17 to 31/03/18!! It becomes difficult, but MC nonetheless confirms the recording of the subject space. MC: The Dusseldorf stock market next week, a mix of all kinds of commodities. FB: Comment about the new website: When you select the previous entry on your phone or laptop, the r disappears at the service provider. LS is going to report the matter. FB: Boxberry the last dots on the i. Some details still need to be finalized. Boxberry has another sales method, they send the prices to everyone. FB is also busy with the UPS/MSX contract. Next week there is a small cross-border commerce trade fair/symposium in A'dam. KB: no points KD: no points MZ: From now on, MZ will handle all MTLS inquiries. Also focuses on the processing of cases. Due to the market scarcity in North America, MTLS receives many requests, but existing MTLS supporters (Pega, Logfret) get priority. The tariffs to North America are still valid until 31/03/17. Carriers are careful with documentation. Should an urgent	
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	shipment become necessary, consult MTLs to check which shipping company has space. Then sales can base the quote on the good carrier at the same time. K-Line has withdrawn the PSS, presumably due to the failure of a number of tenders. The same goes for MOL, because they dare to issue tariffs with a longer validity. CMA, however, does continue with the PSS. USD. 150.00/USD. 200.00 on the East Coast + Gulf. Currently, carriers prefer to sail through ports in Germany and France, because the tariffs are higher. Currently, GH does indeed reserve slots at a number of shipping companies. Should MTLs not fill up all of the reservations, then they let them expire approximately 2 days before AMS closure, so that the carrier can use the space themselves, without creating any annoyance. HMM will discontinue the west coast operations through the cooperation of MSC and Maersk with the new alliances. However, CMA will follow a direct route. ACL and Hapag need to discuss the crossings from Rotterdam towards Halifax. Should ACL no longer be able to sail with Hapag from Rotterdam, then maybe start looking for a Barge between Rotterdam and Antwerp? MZ wants to send out tenders again to conclude contracts instead of built rates. MZ: For Cargo Office, DAP rates for 1st and 2nd can be based on HMM/YM and UASC. MZ: Delmar addition: MTLs will also work with the Delmar house B/L. Delmar calculates USD. 30.00 for HBL and USD. 15.00 for ISF filing. Therefore, go about this sparingly. For the moment, rather no HBL with MOL and NYK. MC: Wondering what FB is currently doing. FB replies that he is working on the UPS's contract and that he has had a Boxberry document that needed to be translated. MC also notes that it is difficult to reach FB and nobody knows where he is.	
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Issues to discuss at the next sales meeting

Action	Who	Status	Deadline
E-commerce Developments / Russian Market mapping.	Hans		2017
Following-up on shipments, discuss status with SV and DvB	Linda		Week 14
Share Delmar contact information	Linda		Week 10

Exhibit 6

LOGISTIQUE HOLDING

*Z.I. du Coudray - 2, rue Nicolas Copernic
93605 AULNAY SOUS BOIS CEDEX
Tél : (33) 1.49.39.68.64 – Fax : (33) 1.49.39.68.62*

By mail and email

April 14, 2017

Logfret B.V.
Attn. Mr Bergwerff
Ringdijk 366
2983 GR RIDDERKERK

Kirsha B.V.
Attn. Mr Bergwerff
Noordersingel 78
2993 TA BARENDRECHT

Dear Mr Bergwerff,

This letter is to express our concerns and to demand you to immediately cease all acts and activities that may be against the interest of Logfret B.V. (**Logfret**).

I RECENT DEVELOPMENTS

Our recent investigations into your behaviour revealed some shocking new facts:

- a. On 16 March 2017 you sent an email to the employees of Logfret. In short, this email states that you expect to become the sole shareholder of Logfret on short notice – which is obviously incorrect – and that Logistique Holding (**LH**) is (allegedly wrongfully) trying to put you under undue pressure to step down as a director. Also, the emails suggest that you reached out to two major international organisations that appear to be competitors of the Logfret-group in order to sell (a part of) your (future) equity interest in Logfret. All these actions – poisoning the personnel of Logfret against its majority shareholder, reaching out to competitors and potentially even sharing company-sensitive information with competitors of LH – are considered to be solely in your interest and/or go against the interest of the company. By taking these actions, you act in clear breach of your duties as a statutory director of Logfret.
- b. On or about 27 February 2017, you incorporated a company called MSX Worldwide Express Ltd. The fact that you did not inform LH about this incorporation, nor asked for its approval, is in breach of the governance arrangements agreed upon in the company. Also, it is unclear to LH why this company was incorporated (your answer during the hearing – to cease potential future business opportunities following Brexit – was not very convincing). Obviously, as statutory director of Logfret, you are not allowed to keep ‘corporate opportunities’ or business that belongs to Logfret outside of reach of Logfret (by giving it to this newly incorporated company) and you should refrain from any attempt to do so.
- c. Meanwhile, we understand that you have asked employees of Logfret to have Logfret enter into transport contracts with competitors of the Logfret-group, implying that LH approves of this behaviour whilst knowing this is not the case. This is impermissible. Being part of the Logfret-group, Logfret is obliged to grant business-where possible-within the Logfret-group.

This has been common corporate practice for the last few years and you are not allowed to deviate from that practice.

- d. Finally, it came to the attention of LH that you have been trying to snap up employees from the Logfret-group to start working for one of your own companies. This is supported by your email of 16 March 2016. Again, as a statutory director of Logfret, part of the Logfret-group, you are not allowed to take any such actions that go against the interest of the company and the group.

It does not require further explanation that these acts are harming Logfret and the Logfret-group. In addition to the fact that you should have refrained from these activities in the first place, it is striking that you never informed LH about this. From previous correspondence and your statements at the court hearing we understand that you believe that you no longer have the obligation to inform LH about your activities and/or developments as LH – in your view – no longer has any (shareholder) rights (information nor approval rights). Naturally, this is total nonsense. By acting and behaving like you are the sole shareholder of Logfret – stripping LH of all its rights – you fail to recognize that Dutch company law does not enable a (minority) shareholder to do so, even if the rights of another shareholder are suspended. Besides that, LH explained in its correspondence, the writ of summons and at the court hearing that there is no obligation for LH to offer its shares to your personal holding company and that even if there would be an obligation for LH to offer its shares, this does not release you from the obligation to inform LH or the general meeting of shareholders about your actions as a statutory director.

II FULL ACCESS TO ADMINISTRATION OF LOGFRET

On 20 February 2017, LH discovered it did not have access to the administration of Logfret B.V. (**Logfret**). It appeared that you – without the necessary approval of LH or even informing LH of this – replaced the operating system (Satellite) and the accounting system (IRIS) by alternative software named 'Cargowise'. Due to this replacement, LH no longer has insight in the financials and/or control over its subsidiary. This behaviour is in breach of governance, unacceptable and goes against the interest of the company and the group.

As explained, changing the administration system of Logfret has a negative impact on the Logfret-group's banking arrangements, intercompany netting and obligations towards third parties. Being majority shareholder of Logfret and having consolidated all financial statements, it is of crucial importance that LH has insight in the administration/financials of Logfret and is actually 'in control' of Logfret. Neither is currently the case.

In the letter of your attorneys of 9 March 2017 and at the court hearing of 10 April 2017 your attorneys offered LH full access to the Cargowise system. LH stands its point of view that the replacement of the Satellite and IRIS system by the Cargowise system should be reversed. However, LH insists to have full insight into the administration and financials of the company, which expressly includes full access to the Cargowise system.

III CONCLUSION

From the above, we conclude that you are acting against the interest of Logfret and the Logfret-group. We herewith demand you to immediately cease all acts and activities that may be against the interest of Logfret B.V., which is included but not limited to:

III CONCLUSION

From the above, we conclude that you are acting against the interest of Logfret and the Logfret-group. We herewith demand you to immediately cease all acts and activities that may be against the interest of Logfret B.V., which is included but not limited to:

- i) refrain from approaching third parties (especially competitors of Logfret or the Logfret-group) and entering into conversations with such parties about the potential sale of shares in Logfret;
- ii) refrain from sharing company sensitive information to third parties and/or competitors of Logfret and/or the Logfret-group;
- iii) refrain from snapping up employees of Logfret and the Logfret-group;
- iv) refrain from communicating (negative and/or false) statements to employees of Logfret and its subsidiaries and correct the statements made in your email dated 16 March 2017.

Also, we demand that – on or before 18 April 2017 – you

- v) give us full insight to the administration and financials of the company, which expressly includes full access to the Cargowise system; and
- vi) provide full disclosure of all details relating to your actions described above under a until d.

This letter – read in conjunction with the writ of summons and pleading notes in interim proceedings – can be deemed a letter of objections (bezwarenbrief) within the meaning of 2:349 Dutch Civil Code.

Marc Millet
Logistique Holding SAS

Exhibit 7

Ken Mistri

From: Krishna Memmler
Sent: Monday, April 24, 2017 9:50 AM
To: Ken Mistri
Subject: Tradin
Attachments: RE: SOP Tradin; RE: SOP Tradin

Follow Up Flag: Follow up
Flag Status: Flagged

Dear Ken –

Good morning!

The Tradin account is business that we had with the Netherlands office, terms were DAP or CFR. FedEx Trade Networks is their broker. As all other NL business this has completely stopped. The volume of this business was extremely high, the account is very demanding and I am surprised NL would pull this business. This is the account that we would have to outlay high storage due to customs exams and FDA. They import organic blueberries and raspberries from their partner Tradin NL. The cargo would deliver to several different refrigerated storage facilities.

When we began handling all NL business our only profit was \$85 per MBL per DAP terms, and for CFR terms we bill the broker \$95. As the account grew NL office would make one booking with the ss line and send multiple containers as one container per house under one master, we then started billing the initial \$85 for the first HBL and \$25 per additional HBL, NL office rejected in the beginning. You may view the first attachment which contains an SOP specifically for the Tradin account, Devika in NL office submitted the first draft on 10JAN, I sent back with my rejections and notes on 19JAN, as of 31MAR (second attachment) the NL office never satisfied the SOP and advised when Hans returned from vacation on 24MAR that he would review. The customer service and demands are far too high for only \$85 per shipment. You could spend a day on Tradin alone with all the communications and service demands. We would like to have this business and all other business back from NL office but I do feel that any of the accounts should give more profit than \$85.

Please let me know if you need more info for this account.

Thanks

Best Regards,
Mrs. Krishna Memmler
Atlanta Branch Manager



Logfret, Inc.
4751 Best Road
Suite 205
Atlanta GA 30337
Direct: 770-679-6997
Main: 770-731-0580
Fax: 770-703-7390
Email: kmemmler@us-logfret.com
www.logfret.com

Exhibit 8

Ken Mistri

From: Krishna Memmler
Sent: Tuesday, April 25, 2017 11:39 AM
To: Ken Mistri
Subject: FW: TRESPA URGENT
Attachments: 201704051501.pdf

Follow Up Flag: Follow up
Flag Status: Flagged

Dear Ken

Good morning!

Please see attached an older HBL from mid March from NL Office. This is also moved to Delmar under "LOGFRET CARGO LINE"

Best Regards,
Mrs. Krishna Memmler
Atlanta Branch Manager



Logfret, Inc.
4751 Best Road
Suite 205
Atlanta GA 30337
Direct: 770-679-6997
Main: 770-731-0580
Fax: 770-703-7390
Email: kmemmler@us-logfret.com
www.logfret.com



JULY 2017
9TH - 11TH
LAS VEGAS
MANDALAY BAY
CONVENTION CENTER
A NEW WORLD FOR BEAUTY
BOLOGNA LAS VEGAS HONG KONG

Organized by North American Beauty Events LLC

Meet Us
Level 1
Private Label Section
Booth 14125

All quotes will be answered within 48 hours

All quotes are subject to change due to fuel index

All air shipments subject to security screening

**** Note! Dates for arrivals and departures are local date and time and estimates are given without guarantee and subject to change without prior notice. ****

NOTE: COMMERCIAL INVOICES ARE REQUIRED TO SHOW FOLLOWING STATEMENT, EFFECTIVE NOVEMBER 15, 2016 :

“ These items are controlled by the U.S. Government and authorized for export only to the Country of ultimate destination for use by the ultimate consignee or end-user(s) herein Identified. They may not be resold, transferred, or otherwise disposed of, to any other country or to any person other than the authorized ultimate consignee or end-user(s), either in their original form or after being incorporated into other items, without first obtaining approval from the U.S. Government or as otherwise authorized by U.S. law and Regulations”

This E-mail is confidential and intended only for the use of the individual/s or entity named above and may contain information that is privileged. If you are not the intended recipient, you are notified that any dissemination, distribution or copying of this E-mail is strictly prohibited. If you have received this E-mail in error, please notify us immediately by return E-mail or telephone and destroy the original message.

This is a written communication from Logfret, Inc. (FMC No. 007636), acting as an NVOCC.

If this is a quote: Upon Carrier's receipt of Shipper's written acceptance of the rates contained herein, this document along with the written acceptance shall constitute an NRA pursuant to 46 C.F.R. §520.13 and §532. This NRA is valid until the stated expiration date or until the stated quantity has been received by Carrier, whichever occurs first. Carrier's Rules Tariff, provided free of charge at <http://rates.descartes.com> , contains the terms and conditions which are further applicable to this shipment.

From: Jennifer Brown
Sent: Thursday, April 06, 2017 9:20 AM
To: Andre Conrads
Cc: Krishna Memmler; Devika van Beveren
Subject: RE: TRESPA URGENT

Dear Andre,
Does the same apply to the shipment attached? This is another one Trespa was asking about.

Best Regards,
Mrs. Jennifer Brown
Ocean Import / Export Operations



Logfret, Inc.
4751 Best Road
Suite 205
Atlanta GA 30337
Direct: 770-679-6998
Main: 770-731-0580
Fax: 770-703-7390
Email: jbrown@us-logfret.com
www.logfret.com



JULY 2017
9TH - 11TH
LAS VEGAS
MANDALAY BAY
CONVENTION CENTER
A NEW WORLD FOR BEAUTY
SOLIGNA LAS VEGAS HONG KONG

Organized by North American Beauty Events LLC
Beauty | Soligna | Here

Meet Us
Level 1
Private Label Section
Booth 14125

*****Importer Security Filing (ISF or 10+2) goes into full enforcement on Jan 26, 2010*****

Filing must be transmitted 48 hours prior to vessel departure.

CBP will enforce fines and penalties for no filing, late filing, and inaccurate ISF info.

All quotes will be answered within 48 hours

All quotes are subject to change due to fuel index

**** Note! Dates for arrivals and departures are local date and time and estimates are given without guarantee and subject to change without prior notice.****

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This is a written communication from Logfret, Inc. (FMC No. 007636), acting as an NVOCC.

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From: Andre Conrads [<mailto:andre.conrads@logfret.nl>]

Sent: Thursday, April 06, 2017 9:15 AM

To: Jennifer Brown

Cc: Krishna Memmler; Devika van Beveren

Subject: RE: TRESPA URGENT

Hi Jennifer,

These containers has been shipped by our NVOCC and they have addressed this to their agent in USA we will asked if they will call Trespa USA. .

Best regards,



Andre Conrads
Coördinator Ocean Freight

Ringdijk 366
2983 GR RIDDERKERK
THE NETHERLANDS
T.: +31 180 711000
F.: +31 180 711001

M.: andre.conrads@logfret.nl



<http://www.logfret.nl>

Chamber of commerce: 24393282

The Dutch Forwarding Conditions, latest version, including the arbitration clause, filed by FENEX with the court registry at the Arrondissementsrechtbank in Rotterdam, are applicable to all our activities. These conditions will be supplied upon request.



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Van: Jennifer Brown [<mailto:jbrown@us-logfret.com>]

Verzonden: woensdag 5 april 2017 22:34

Aan: Logfret Trespa <trespa@logfret.nl>; Devika van Beveren <devika.vanbeveren@logfret.nl>; Andre Conrads <andre.conrads@logfret.nl>

CC: Krishna Memmler <kmemmler@us-logfret.com>

Onderwerp: TRESPA URGENT

Urgentie: Hoog

Dear All,

Trespa has contacted me regarding this shipment that I do not have any trace of on file or e-mails. Have you received these? Also, if this pre-alert has been sent to me and has just been overlooked, thanks to forward pre-alert e-mail urgently. Customer needs update, and I do not have this on file.

Best Regards,

Mrs. Jennifer Brown

Ocean Import / Export Operations



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Suite 205

Atlanta GA 30337

Direct: 770-679-6998

Main: 770-731-0580

Fax: 770-703-7390

Email: jbrown@us-logfret.com

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